



CHAPTER xlvii

An Act to provide for the construction and maintenance of a bridge across the river Usk in the county borough of Newport with approach roads and other works; and for other purposes. [3rd August, 1961.]

WHEREAS the borough of Newport (hereinafter called "the borough") is a county borough under the government of the mayor, aldermen and burgesses of the borough (hereinafter called "the Corporation"):

And whereas it is expedient to empower the Corporation to construct a bridge across the river Usk in the borough for vehicular and pedestrian traffic and approach roads and street works in connection therewith and for this purpose to acquire lands compulsorily:

And whereas it is expedient to confer upon the Corporation the other powers contained in this Act:

And whereas it is expedient that the other provisions contained in this Act be enacted:

And whereas the purposes of this Act cannot be effected without the authority of Parliament:

And whereas estimates have been prepared for the purposes hereinafter mentioned and such estimates are as follows:—

For the construction of the bridge and other works authorised by Part III (Works) of this Act		£1,050,000
For the purchase of lands and the payment of compensation under the provisions of this Act		£450,000

And whereas the works included in such estimates are permanent works and it is expedient that the Corporation be empowered to borrow money for these and other purposes as provided by this Act:

And whereas plans and sections showing the lines and levels of the works authorised by this Act (other than Substituted Work No. 1) and showing the lands required or which may be taken for the purposes or under the powers of this Act (otherwise than for the purposes of Substituted Work No. 1), and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands, were duly deposited in the office of the Clerk of the Parliaments and in the Private Bill Office in the House of Commons and with the town clerk of the borough, which plans, sections and book of reference are in this Act referred to respectively as the deposited plans, sections and book of reference:

And whereas a plan and section showing the lines and levels of Substituted Work No. 1 authorised by this Act and showing the lands required or which may be taken for the purposes of Substituted Work No. 1, and a book of reference containing the names of the owners and lessees or reputed owners and lessees and of the occupiers of those lands, were deposited in the month of June nineteen hundred and sixty-one in the office of the Clerk of the Parliaments and in the Private Bill Office in the House of Commons and with the town clerk of the borough, which plan, section and book of reference are in this Act referred to respectively as the substituted plan, section and book of reference:

And whereas in relation to the promotion of the Bill for this Act the requirements of Part XIII of the Local Government Act, 1933, have been observed:

May it therefore please Your Majesty that it may be enacted, and be it enacted, by the Queen's most Excellent Majesty, by and with the advice and consent of the Lords Spiritual and Temporal, and Commons, in this present Parliament assembled, and by the authority of the same, as follows (that is to say):—

PART I

PRELIMINARY

Short and
collective
titles.

1.—(1) This Act may be cited as the Newport Corporation Act, 1961.

(2) The enactments specified in the First Schedule to this Act and this Act may be cited together as the Newport Corporation Acts and Orders, 1826 to 1961.

Division of
Act into
Parts.

2. This Act is divided into Parts as follows:—

Part I.—Preliminary.

Part II.—Lands.

Part III.—Works.

Part IV.—Finance.

Part V.—Protective provisions.

Part VI.—General.

3.—(1) The following Acts and parts of Acts, so far as the same are applicable for the purposes and are not inconsistent with the provisions of this Act, are hereby incorporated with this Act, namely:—

PART I

—cont.

Incorporation
of Acts.

(a) the Lands Clauses Acts, except sections 19, 20, 92, 127 to 133 and 150 and 151 of the Lands Clauses Consolidation Act, 1845;

(b) section 77 of the Railways Clauses Consolidation Act, 1845, and sections 78 to 85 of the same Act, as the said sections were originally enacted and not as amended for certain purposes by section 15 of the Mines (Working Facilities and Support) Act, 1923, and, in the construction of those provisions, “the railway” shall mean the works authorised by this Act and “the centre of the railway” shall mean any part of those works.

(2) In the construction of the provisions of the Lands Clauses Acts and the Railways Clauses Consolidation Act, 1845, incorporated with this Act, the expressions “the promoters of the undertaking” and “the company” mean the Corporation.

4.—(1) In this Act the several words and expressions to which meanings are assigned by section 343 of the Public Health Act, 1936, have the same respective meanings, unless there be something in the subject or context or in this section repugnant to such construction.

(2) In this Act, unless the subject or context otherwise requires—

“the Act of 1933” means the Local Government Act, 1933;

“the Act of 1936” means the Public Health Act, 1936;

“the borough” means the county borough of Newport;

“the bridge” means the bridge comprised in Substituted Work No. 1 authorised by this Act and so much of the approach roads comprised in that work as lies between Dock Street and Corporation Road and includes the carriageways and footways and other conveniences provided in connection therewith;

“the Corporation” means the mayor, aldermen and burgesses of the borough;

“daily fine” means a fine for each day on which an offence is continued after conviction;

“the electricity board” means the South Wales Electricity Board;

“the gas board” means the Wales Gas Board;

PART I
—cont.

“ the generating board ” means the Central Electricity Generating Board;

“ the harbour commissioners ” means the Newport Harbour Commissioners;

“ the Lands Clauses Acts ” means the Lands Clauses Acts as modified by the Land Compensation Act, 1961, and by this Act;

“ the line of high water ” means the line of mean high water spring tides;

“ the Minister ” means the Minister of Transport;

“ the river ” means the river Usk;

“ the river board ” means the Usk River Board;

“ telegraphic line ” has the same meaning as in the Telegraph Act, 1878;

“ the town clerk ” means the town clerk of the borough;

“ the tribunal ” means the Lands Tribunal;

“ the Trinity House ” means the Corporation of Trinity House of Deptford Strond;

“ the water board ” means the Newport and South Monmouthshire Water Board;

“ the works ” means the works authorised by Part III of this Act.

(3) A reference in this Act to any other enactment shall be construed as a reference to that enactment as amended by any enactment including this Act.

PART II

LANDS

Power to
acquire lands.

5.—(1) Subject to the provisions of this Act, the Corporation may enter upon, take and use such of the lands delineated on the deposited plans and the substituted plan and described in the deposited book of reference and the substituted book of reference respectively as may be required for or in connection with the construction and maintenance of the works and for other the purposes of this Act or for any of those purposes.

(2) The powers of compulsory purchase of land under this section shall cease after the expiration of three years from the first day of December, nineteen hundred and sixty-one.

6.—(1) If the deposited plans or the substituted plan or the deposited book of reference or the substituted book of reference are inaccurate in their description of any land, or in their statement or description of the ownership or occupation of any land, the Corporation, after giving ten days' notice to the owner, lessee and occupier of the land in question, may apply to two justices having jurisdiction in the borough for the correction thereof.

PART II
—cont.

Correction of errors in deposited plans, substituted plan and books of reference.

(2) If on any such application it appears to the justices that the misstatement or wrong description arose from mistake, or from wrong information given to the Corporation, the justices shall certify the fact accordingly and shall in their certificate state in what respect any matter is misstated or wrongly described.

(3) The certificate shall be deposited in the office of the Clerk of the Parliaments, and a copy thereof in the Private Bill Office of the House of Commons and with the town clerk; and thereupon the deposited plans or the substituted plan and the deposited book of reference or the substituted book of reference shall be deemed to be corrected according to the certificate, and it shall be lawful for the Corporation to take the land and execute the works in accordance with the certificate.

(4) A person with whom a copy of a certificate is deposited under this section shall keep it with the other documents to which it relates.

7.—(1) For the purposes of this Act the following provisions of this section shall have effect in substitution for section 92 of the Lands Clauses Consolidation Act, 1845.

Purchase of part only of certain properties.

(2) No person shall be required to sell a part only of any house, building or factory, or of a park or garden belonging to a house, if he is willing and able to sell the whole of the house, building, factory, park or garden unless the tribunal determines—

- (a) in the case of a house, building or factory, that such part as is proposed to be taken can be taken without material detriment to the house, building or factory; or
- (b) in the case of a park or garden, that such part as is proposed to be taken can be taken without seriously affecting the amenity or convenience of the house to which it belongs.

(3) If the tribunal determines as aforesaid, compensation shall be awarded in respect of any loss due to the severance of the part proposed to be taken in addition to the value of that part; and thereupon the person interested shall be required to sell to the Corporation that part of the house, building, factory, park or garden.

PART II
—cont.

Power to
expedite
entry.

8. At any time after serving a notice to treat in respect of any land that may be acquired compulsorily under this Act, but not less than three months after giving the owner and occupier of the land notice of their intention to exercise the powers of this section, the Corporation may enter on and take possession of the land, or such part thereof as is specified in the last-mentioned notice, without previous consent and without compliance with sections 84 to 90 of the Lands Clauses Consolidation Act, 1845:

Provided that the Corporation shall pay the like compensation for land of which possession is taken under this section, and the like interest on the compensation awarded, as would have been payable if the provisions of those sections had been complied with.

Power to
enter for
survey or
valuation.

9. Any person acting on behalf of the Corporation and duly authorised by the town clerk may at all reasonable times enter on any land that the Corporation are authorised by this Act to acquire compulsorily and on any land to which section 16 (Temporary possession of land) of this Act applies for the purpose of surveying or valuing the land:

Provided that no land shall be entered under this section unless the Corporation, not less than seven days before the first entry and not less than twenty-four hours before any subsequent entry, have given notice to the owner and occupier of the land.

Disregard of
recent
improvements
and interests.

10. In determining any question of disputed purchase money in respect of land acquired under this Act, the tribunal shall not take into account—

(a) any improvements or alteration made, building erected, or work done after the fifth day of December, nineteen hundred and sixty; or

(b) any interest in the land created after the said date;

which in the opinion of the tribunal was not reasonably necessary and was made, erected, done or created with a view to obtaining or increasing the purchase money.

Extinction of
private rights
of way and
rights as to
apparatus.

11.—(1) Any private right of way over, and any right of laying down, erecting, continuing or maintaining any apparatus on, under or over any land that may be acquired compulsorily under this Act shall, if the Corporation so resolve and give notice of their resolution to the owner of the right, be extinguished as from the

acquisition of the land whether compulsorily or by agreement, or as from the expiration of one month from the service of the notice, whichever is the later or as from the time when the Corporation take possession of the land under section 8 (Power to expedite entry) of this Act:

Provided that this section shall not apply to any apparatus belonging to any statutory undertakers.

(2) Any person who suffers loss by the extinguishment of any right under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute under and in accordance with the Land Compensation Act, 1961.

(3) For the removal of doubt it is hereby provided that this section shall not apply to any telegraphic line belonging to or used by the Postmaster-General.

12.—(1) The Corporation may, instead of acquiring any land that they are authorised to acquire compulsorily under this Act, acquire compulsorily such easements and rights over, in or affecting the land as they may require for the purposes of constructing, using, maintaining, renewing or removing the works or of doing any other thing necessary in connection with the works. Power to acquire easements only.

(2) Accordingly the Corporation may give notice to treat in respect of any such easement or right describing the nature thereof; and the provisions of the Lands Clauses Acts shall apply in relation to the acquisition of such easements and rights as if they were lands within the meaning of those Acts.

(3) Where the Corporation have acquired an easement or right only over, in or affecting any land under this section—

(a) they shall not be required or, except by agreement or during the execution of the works, entitled to fence off or sever that land from the adjoining land;

(b) the owner or occupier of the land for the time being shall, after the construction of the works thereon has been completed and subject to the easement or right, have the same right to use the land as if this section had not been enacted.

(4) If in his particulars of claim the owner of any land in respect of which notice to treat for an easement or right is given under this section requires the Corporation to acquire the land, the Corporation shall not be entitled under this section to acquire the easement or right unless the tribunal determines that the easement or right can be granted without material detriment to the land or, in the case of a park or garden belonging to a house, without seriously affecting the amenity or convenience of the house; and, if the tribunal does not so determine, the Corporation

PART II
—cont.

may acquire the land compulsorily notwithstanding that the period mentioned in subsection (2) of section 5 (Power to acquire lands) of this Act has expired, but not later than one year after the determination of the tribunal:

Provided that nothing in this subsection shall apply to land forming part of a street.

(5) A notice to treat given under this section shall be endorsed with notice of the effect of subsection (4) of this section.

Grant of
easements by
persons under
disability.

13.—(1) Any person empowered by the Lands Clauses Acts to sell and convey or release lands may, if he thinks fit, subject to the provisions of those Acts, grant to the Corporation any easement or right required for the purposes of this Act in, over or affecting any such lands not being an easement or right of water in which some person other than the grantor has an interest.

(2) The provisions of the said Acts with respect to lands and rentcharges so far as they are applicable shall extend and apply to any such grant and to any such easement or right as aforesaid.

Power to
reinstate
owners or
occupiers of
property.

14.—(1) The Corporation may enter into and carry into effect an agreement or arrangement with the owner or occupier of any land acquired or to be acquired by the Corporation under this Act, or appropriated or to be appropriated by the Corporation for the purposes of this Act, with respect to the reinstatement elsewhere of such owner or occupier.

(2) For the purpose of reinstating elsewhere an owner or occupier of any land mentioned in subsection (1) of this section, the Corporation, in addition to the powers conferred upon them by subsection (1) of section 5 (Power to acquire lands) of this Act, may purchase by agreement any land in the borough and may on any land acquired by them erect and maintain buildings.

(3) Any such agreement as is mentioned in subsection (1) of this section may provide for the exchange of land and for that purpose the Corporation may pay or receive money for equality of exchange.

Agreements
with adjoining
owners.

15.—(1) The Corporation may enter into and carry into effect agreements with any person being the owner of, or interested in, any land abutting on any portion either of the works or of land that may be acquired under this Act with respect to the sale by the Corporation to him of any land, including any part of a street appropriated by the Corporation under this Act and not required for the works.

(2) The Corporation may accept as satisfaction of the whole or any part of the consideration for any such sale the grant by the purchaser of any land required by the Corporation for the purposes of this Act or any easement or right so required.

16.—(1) This section applies to the lands delineated and numbered 131 to 154 on the substituted plan.

PART II
—cont.

(2) The Corporation may, for the purpose of enabling them to construct the works, enter upon and take possession temporarily of any land to which this section applies, after serving on the owner, lessee and occupier thereof not less than one month's previous notice in writing and may remove any structures thereon:

Temporary
possession of
land.

Provided that the Corporation—

- (a) shall not remain in possession of any such land after a period of three years from the date of the notice to the owner, lessee and occupier of that land; and
- (b) shall not be empowered to purchase compulsorily or be required to purchase any land to which this section applies.

(3) On taking possession of land to which this section applies, the Corporation shall erect a fence not less than six feet in height between such land and the remainder of the hereditament from which it is temporarily severed and shall maintain such fence so long as the powers of this section are being exercised in relation to such land.

(4) The provisions of sections 43 and 44 of the Railways Clauses Consolidation Act, 1845, shall apply to land of which the Corporation take possession temporarily under the powers of this section as if the reference therein to the "railway" were a reference to the works and as if references therein to the "company" were references to the Corporation.

(5) Nothing in this section shall authorise the Corporation, otherwise than by agreement of the Crown, to enter upon or take possession of any part of the land delineated and numbered 133 on the substituted plan or to remove any structures therefrom.

PART III

WORKS

17.—(1) Subject to the provisions of this Act, the Corporation may in the borough make and maintain in the lines shown on the deposited plans and the substituted plan and according to the levels shown on the deposited sections and the substituted section respectively the works referred to in this section, together with all necessary and proper works and conveniences connected therewith or incidental thereto (that is to say):—

Power to
construct
works.

Substituted Work No. 1 A fixed bridge over the river and approach roads, commencing by a junction with the east side of Dock Street on the west bank of the river and terminating by a junction with the west side of Corporation Road on the east bank of the river;

PART III
—cont.

Work No. 2 The reconstruction of George Street and the construction of a junction between George Street and Cardiff Road (including the widening of parts of Commercial Road and Dock Street) commencing by a junction with Cardiff Road and terminating at the commencement of Substituted Work No. 1;

Work No. 3 The widening and re-alignment of Wharf Road (including the widening of parts of Corporation Road and Chepstow Road) commencing at the termination of Substituted Work No. 1 and including and terminating by a junction with the south side of Chepstow Road;

Work No. 4 A new road commencing at the junction of Dock Street and Granville Street and terminating by a junction with the eastern end of George Street;

Work No. 5 A new road commencing by a junction with Coverack Road and terminating at the south-western end of Morris Street.

(2) In the construction of Substituted Work No. 1 authorised by this Act—

(a) the span of the bridge shall have a clear opening between piers in the river carrying the bridge of not less than four hundred and fifty feet;

(b) the underside of the bridge for a distance of one hundred and fifty feet on either side of the centre thereof shall be constructed at a height of not less than sixty-four feet nine inches above ordnance datum (Newlyn) and for a further distance of seventy-five feet on either side thereof shall be constructed at a height of not less than sixty-one feet nine inches above ordnance datum (Newlyn);

(c) the Corporation shall erect on each side of the bridge good and sufficient balustrading at least three feet six inches high.

Power to
deviate.

18. Subject to the provisions of subsection (2) of section 17 (Power to construct works) of this Act, the Corporation in constructing the works may deviate from the lines thereof shown on the deposited plans and the substituted plan respectively to any extent not exceeding the limits of deviation shown on those plans and may deviate from the levels shown on the deposited sections and the substituted section respectively to any extent not exceeding ten feet either upwards or downwards but in the exercise of the powers of this section the Corporation shall not reduce either the clear width at water level or the headway of the span of the bridge over the river required by subsection (2) of the said section 17:

Provided that no lateral or vertical deviation below the line of high water shall be made without the consent in writing of—

(a) the Minister; and

(b) the harbour commissioners;

and that, in the event of any inconsistency between any requirement of the Minister and of the harbour commissioners, or, in the event of the harbour commissioners refusing to give consent, the Corporation shall be deemed to have complied with the provisions of this section if they have complied with the requirement or obtained the consent of the Minister.

19.—(1) Within the limits of deviation shown on the deposited plans and the substituted plan respectively the Corporation, in connection with and as part of the works, may execute or do any of the following works or things:—

Power to make
subsidiary
works.

- (a) make junctions and communications with any existing streets (whether or not they are dedicated to the public use or maintainable at public expense) intersected by or interfered with by, or contiguous with, the works, and divert, widen or alter the line or alter the level of any such existing street for the purpose of connecting the same with the works;
- (b) execute any works for the protection of any adjoining land or buildings;
- (c) execute any works and do any things necessary for the strengthening and supporting of any walls of adjoining buildings or structures;
- (d) alter or remove any structure erected upon any street or land;
- (e) raise, sink or otherwise alter the position of any of the steps, areas, cellars, windows and pipes or spouts belonging to any house or building and remove all other obstructions so that the same be done with as little delay and inconvenience to the inhabitants as the circumstances of the case will admit; and
- (f) provide alternative means of access to premises the existing access to which has been or will be stopped up or interfered with by or as a result of the carrying out of the works;

and shall make compensation for any damage done by them in exercise of the powers of this section.

(2) Any question of disputed compensation payable under the foregoing provisions of this section shall be determined under and in accordance with the Land Compensation Act, 1961.

20.—(1) The Corporation in connection with and at or near any works to be executed or constructed under the powers of this Act may execute, place and keep in the river and elsewhere either permanently or temporarily all such caissons, cofferdams, piles, piers, abutments, embankments, approaches, ways, access works,

Subsidiary
works in
river and
elsewhere.

PART III
—cont.

pumping works, wharves, walls, fences, drains, sewers, tunnels, fenders, mooring posts, bollards, booms, dolphins, pontoons, stagings, stairs, subways, buildings and other works and conveniences as they may find necessary or expedient for or in connection with the construction, maintenance or use of the works:

Provided that—

- (a) the Corporation shall ensure that any works executed or kept under the powers of this section shall not unnecessarily narrow or obstruct the navigable waterway of the river or otherwise unnecessarily interfere with or impede navigation or unnecessarily obstruct the flow of water or the passage of fish;
- (b) no materials which have been excavated shall be deposited in any place below the line of high water except after consultation with the harbour commissioners and in such a position and under such restrictions and regulations as may be fixed by the Minister;
- (c) no works shall be placed in the river under the powers of this section contrary to the provisions of paragraph (a) of subsection (2) of section 17 (Power to construct works) of this Act.

(2) On the completion of the bridge the Corporation shall remove all temporary works placed by them in the river under the powers of this section and shall, at their own expense, keep repaired any other works placed by them in the river under the powers of this section.

Underpinning
of buildings
and structures
near works.

21. If, in the execution and maintenance of the works, it becomes necessary to underpin or otherwise strengthen any houses, buildings or structures within one hundred feet of the works in order to avoid injury to such house, building or structure, the Corporation, at their own costs and charges may, and, if required by the owners or lessees of any such house, building or structure, shall, subject as hereinafter provided, underpin or otherwise strengthen the same and the following provisions shall have effect (that is to say):—

- (1) At least fourteen days' notice shall, except in case of emergency, be given to the owners, lessees and occupiers or by the owners or lessees of the house, building or structure so intended or so required to be underpinned or otherwise strengthened:
- (2) If any owner, lessee or occupier of any such house, building or structure, or the Corporation, as the case may require, shall within seven days after the giving of such notice give a counter-notice disputing the necessity

of such underpinning or strengthening the question of the necessity shall be referred to an arbitrator (in this section referred to as "the referee"):

- (3) The referee shall forthwith upon the application of either party proceed to inspect such house, building or structure, and determine the matter referred to him, and
- (a) in the event of his deciding that such underpinning or strengthening is necessary, he may and, if so required by such owner, lessee or occupier, shall, prescribe the mode in which the same shall be executed and the Corporation may and shall proceed forthwith so to underpin or strengthen the said house, building or structure;
- (b) in the event of his deciding that such underpinning or strengthening is not necessary the Corporation shall not be under any obligation to underpin or strengthen the said house, building or structure:
- (4) The Corporation shall be liable to compensate the owners, lessees and occupiers of every such house, building or structure, for any loss or damage which may result to them by reason of the exercise of the powers granted by this section, if the claim for compensation in respect of such loss or damage is made within three months from the occurrence thereof:
- (5) (a) In any case in which any house, building or structure has been underpinned or strengthened under the powers of this section, the Corporation may from time to time after the completion of such underpinning or strengthening and during the execution of the work in connection with which such underpinning or strengthening was done, or within twelve months after the completion of that work, enter upon and survey such house, building or structure and do such further underpinning or strengthening thereof as they may deem necessary or expedient or as, in case of dispute between the Corporation on the one hand and the owner, lessee or occupier of the house, building or structure on the other hand, shall be settled by arbitration;
- (b) If in any case in which any house, building or structure has been underpinned or strengthened on the requisition of the Corporation such underpinning or strengthening at any time within twelve months from the completion of the work in connection with which such underpinning or strengthening was done proves inadequate for the support or protection of the house, building or structure against further injury arising from the execution or maintenance of such work, then, and in every such case

PART III
—cont.

unless such underpinning or strengthening has been done in pursuance of and in the mode prescribed by the referee at the requirement of the owner, lessee or occupier of such house, building or structure, the Corporation shall make compensation to the owners, lessees and occupiers of such house, building or structure for such injury if the claim for compensation in respect thereof is made by such owners within twelve months, and by such lessees or occupiers within six months, from the discovery of such injury:

- (6) Nothing in this section contained nor any dealing with any property in pursuance of this section shall relieve the Corporation from the liability to compensate under section 68 of the Lands Clauses Consolidation Act, 1845, or under any other Act but any work done or compensation paid under this section shall be taken into account in assessing the compensation payable under the said section 68:
- (7) Every case of compensation to be ascertained under this section shall be ascertained according to the provisions of the Lands Clauses Acts.

Stopping up
of highways.

22.—(1) The Corporation may stop up the whole or such part or parts as they think fit of so much of the highways mentioned in the Second Schedule to this Act as is shown on the substituted plan as intended to be stopped up and, thereupon, all rights of way, whether public or private, over or along the same shall be extinguished and the Corporation may appropriate and use the site thereof:

Provided that the Corporation shall not under the powers of this section stop up any part of the said highways unless—

- (a) such part is bounded on both sides by lands either belonging to the Corporation or of which the Corporation have taken possession under section 8 (Power to expedite entry) of this Act; or
- (b) the Corporation obtain the consent of the owners, lessees and occupiers of the houses and lands on both sides thereof which have access thereto.

(2) Any person who suffers loss by the extinguishment of any private right over the highway or part thereof stopped up under this section shall be entitled to be paid by the Corporation compensation to be determined in case of dispute under and in accordance with the Land Compensation Act, 1961.

23. The Corporation may at the points on any street marked on the deposited plans "Vehicular access to be stopped up" erect walls or barriers for the prevention or limitation of access by vehicles to or from that street.

PART III
—cont.
Power to prevent vehicular access to or from certain works.

24.—(1) Subject to the provisions of subsection (4) of section 43 (Accommodation for apparatus of Postmaster-General and statutory undertakers) of this Act but notwithstanding anything contained in the Public Utilities Street Works Act, 1950, or in any other enactment, no person shall be entitled to enter upon, break up or interfere with the bridge or the carriageways and footways of the same for the purpose of laying down any main, pipe or wire or executing any work therein, thereon or thereunder except with the consent of the Corporation and in accordance with such terms and conditions as the Corporation may determine.

No mains or pipes to be laid in bridge.

(2) Nothing in this section shall alter, prejudice or affect any of the rights and powers of the Postmaster-General under the provisions of the Telegraph Acts, 1863 to 1954.

25.—(1) The Corporation may, whenever in their opinion it is necessary so to do, for the purposes of the maintenance, repair or improvement of the bridge or in case of emergency, wholly or partially close the bridge or any portion thereof to traffic (whether vehicular or pedestrian) along or over the bridge:

As to closing of bridge.

Provided that, except in cases of emergency, the Corporation shall not less than seven days before closing the bridge publish a notice stating the day and time when the bridge will be closed and the period during which it is estimated it will remain closed—

- (a) in a newspaper circulating in the borough;
- (b) in the London Gazette; and
- (c) at a conspicuous place at or near to the approaches to the bridge.

(2) An undertaker, as defined in subsection (1) of section 43 (Accommodation for apparatus of Postmaster-General and statutory undertakers) of this Act, shall be entitled in case of emergency to have access to the bridge for the purpose of repairing apparatus, as defined in the said subsection, notwithstanding that the bridge or any portion thereof is for the time being closed pursuant to the provisions of this section.

26. The Corporation may sell or dispose of all matters or things excavated or obtained in the construction of the works and all building and other materials of any houses, buildings or structures acquired or removed by them under the powers of this Act and not required for the purposes of this Act and also all

Power to sell materials.

PART III
—cont.

matters or things in, under or upon any street or other place altered by them for the purposes of this Act and any matters or things obtained in the alteration of or interference with any drain or sewer under the powers of this Act:

Provided that the Corporation shall not under the powers of this section sell or dispose of any matter or thing if any person other than the Corporation proves to the satisfaction of the Corporation that he is the owner thereof.

Works below
high-water
mark to be
subject to
approval of
Minister.

27.—(1) Subject to the provisions of this Act, any permanent work authorised by this Act, so far as the same shall be on, under or over tidal waters or tidal lands below the line of high water, shall only be constructed in accordance with plans and sections approved by the Minister and subject to such conditions and restrictions as the Minister may prescribe before such work is begun.

(2) Any alteration or extension of any such work shall be subject to the like approval.

(3) If any such work is commenced or completed contrary to the provisions of this section the Minister may abate and remove the same and restore the site thereof to its former condition at the cost of the Corporation; and the amount of such cost shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or, where the amount does not exceed twenty pounds, by the Minister summarily as a civil debt.

Provision
against
danger to
navigation.

28.—(1) In case of injury to or destruction or decay of any work constructed by the Corporation under the powers of this Act, or any part of such work, so far as the same shall be constructed on, under or over any tidal waters or tidal lands below the line of high water, the Corporation shall lay down such buoys exhibit such lights or take such other means for preventing so far as may be danger to navigation as shall from time to time be directed by the harbour commissioners; and the Corporation shall apply to the harbour commissioners for directions as to the means to be taken.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable to a fine not exceeding ten pounds and to a daily fine not exceeding twenty shillings.

Abatement
of work
abandoned
or decayed.

29.—(1) Where any work constructed by the Corporation under the powers of this Act and situate wholly or partially on, under or over any tidal waters or tidal lands below the line of high water is abandoned or suffered to fall into decay, the Minister or the harbour commissioners may by notice in writing either require the Corporation at their own expense to repair and restore such part of such work as is situate below the line of high water or any portion thereof or require them to abate or remove the same and restore the site thereof to its

former condition to such an extent and within such limits as the Minister or the harbour commissioners, as the case may be, may think proper.

PART III
—cont.

(2) Where any part of any such work which has been abandoned or suffered to fall into decay is situate above the line of high water and is in such condition as to interfere or to cause reasonable apprehension that the same may interfere with the right of navigation or other public rights over the foreshore the Minister or the harbour commissioners, as the case may be, may include any such part of such work or any portion thereof in any notice under this section.

(3) Where any work constructed by the Corporation under the powers of this Act and situate wholly or partially on, under or over any tidal waters or tidal lands is abandoned or suffered to fall into decay and is in such a condition as to obstruct unnecessarily the flow of water in the river or as to involve a risk of water flowing out of the river and flooding the adjacent land, the river board may by notice in writing require the Corporation at their own expense to repair and restore such part of such work as is in such condition or any portion thereof or require them to abate or remove the same and restore the site thereof to its former condition to such extent and within such limits as the river board may think proper.

(4) Subject to the provisions of subsection (6) of this section, if during the period of thirty days from the date when a notice is served upon the Corporation under this section or, where any requirement contained in such a notice is referred to the Minister pursuant to subsection (5) of this section, if during the period of thirty days from the date when the requirement is confirmed by the Minister or the Minister makes another requirement, the Corporation fail to comply with any requirement contained in the notice or any requirement substituted by the Minister pursuant to the said subsection (5), the Minister or the harbour commissioners or the river board, making the original requirement as the case may be, may at the expense of the Corporation execute the works required to be done by the Corporation under the original notice or as determined by the Minister and the amount of such expense shall—

- (a) in the case of works executed by the Minister, be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or, where the amount does not exceed twenty pounds, by the Minister summarily as a civil debt; and
- (b) in the case of works executed by the harbour commissioners or the river board, be a debt due from the Corporation to the harbour commissioners or the river board, as the case may be, and shall be recoverable by

PART III
—cont.

the harbour commissioners or the river board, as the case may be, in any court of competent jurisdiction or, where the amount does not exceed twenty pounds, summarily as a civil debt.

(5) If it appears to the Corporation that any requirement made by the harbour commissioners or the river board under this section is unreasonable they may, within thirty days after the receipt of notice of any such requirement, refer the matter to the Minister who may confirm or annul the requirement or make such other requirement as he may think fit. Where the Corporation refer a requirement to the Minister they shall at the same time give notice in writing to the harbour commissioners or the river board, as the case may be, and before making a determination under this subsection the Minister shall consult with the authority making the requirement.

(6) If there shall be any inconsistency between a requirement made by the harbour commissioners or the river board and any requirement made by the Minister under this section the requirement of the Minister shall prevail.

Survey of
works by
Minister.

30. If at any time the Minister deems it expedient for the purposes of this Act to order a survey and examination of any work constructed by the Corporation under the powers of this Act which shall be on, under or over tidal waters or tidal lands below the line of high water or of the site upon which it is proposed to construct any such work the Corporation shall defray the expense of the survey and examination and the amount thereof shall be a debt due from the Corporation to the Crown and shall be recoverable either as a debt due to the Crown or, where the amount does not exceed twenty pounds, by the Minister summarily as a civil debt.

Permanent
lights on
bridge.

31.—(1) After the completion of the bridge the Corporation shall on each side thereof exhibit and keep burning every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the harbour commissioners shall from time to time direct.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

Lights on
works during
construction.

32.—(1) The Corporation shall at or near such part of any work constructed by them under the powers of this Act as shall be below the line of high water during the whole time of the construction, alteration or extension of the same exhibit and keep burning every night from sunset to sunrise such lights, if any, and take such other steps for the prevention of danger to navigation as the Minister and the harbour commissioners or as, failing agreement between the Minister and the harbour commissioners, the Minister shall from time to time require or approve.

(2) If the Corporation fail to comply in any respect with the provisions of this section they shall be liable to a fine not exceeding twenty pounds and to a daily fine not exceeding forty shillings.

PART III
—cont.

33.—(1) The Corporation, when they have acquired the necessary lands, rights or easements, shall— Headway indicators.

(a) at one point above the bridge; and

(b) at two points on each side of the river below the bridge,

agreed with the harbour commissioners, erect and maintain headway indicators for the purpose of indicating to vessels in the river the vertical distance for the time being between the underside of the bridge and the water level under the bridge.

(2) For this purpose the Corporation may, by agreement, acquire the necessary lands, rights or easements.

(3) Any indicator provided under this section shall be illuminated between sunset and sunrise.

34. Nothing contained in this Part of this Act shall prejudice or derogate from the powers, rights and privileges of the Trinity House. Saving for Trinity House.

PART IV

FINANCE

35.—(1) The Corporation may borrow—

Power to borrow.

(a) such sums as may be necessary for any of the purposes of this Act; and

(b) without the consent of any sanctioning authority, for any of the purposes specified in the first column of the following table, the sums specified in relation thereto in the second column of that table.

(2) The period for the repayment of a sum borrowed under paragraph (b) of subsection (1) of this section shall not exceed the period specified in relation thereto in the third column of the said table.

(3) Subject to the provisions of this section, Part IX of the Act of 1933 shall have effect as if money borrowed under this section were borrowed under that Part, and as if the following table were in the Eighth Schedule to that Act.

(4) It shall not be lawful to exercise the powers of borrowing conferred by this section, other than the power of borrowing to

PART IV
—cont.

pay the costs, charges and expenses of this Act, except in compliance with any order for the time being in force under section 1 of the Borrowing (Control and Guarantees) Act, 1946.

(1) Purpose for which money may be borrowed	(2) Amount	(3) Maximum period for repayment of loan, calculated from the date or dates of borrowing
(a) The purchase of lands, easements and rights and the payment of compensation under the provisions of this Act	£112,500	Sixty years
(b) The construction of the bridge	£196,250	Fifty years
(c) Roadworks	£66,250	Thirty years
(d) The costs, charges and expenses of this Act	The sum requisite	Five years

PART V

PROTECTIVE PROVISIONS

Crown
rights.

36. Nothing in this Act affects prejudicially any estate, right, power, privilege or exemption of the Crown and, in particular, and without prejudice to the generality of the foregoing, nothing herein contained authorises the Corporation to take, use or in any manner interfere with any portion of the shore or bed of the sea or of any river, channel, creek, bay or estuary or any land, hereditaments, subjects or rights of whatsoever description belonging to Her Majesty in right of Her Crown and under the management of the Crown Estate Commissioners without the consent in writing of those Commissioners on behalf of Her Majesty first had and obtained for that purpose.

Adaptation
of ships.

37. For the protection of certain shipowners the following provisions shall, unless otherwise agreed in writing between the shipowner concerned and the Corporation, apply and have effect:—

(1) In this section—

“the shipowner” means the owner for the time being of one or more of the following sand-sucking vessels (that is to say):—

Isca, Isabel, Indium, Imogen, Bowpride, Bowcrest, Bowstar, Bowline, Badminton, Camerton, Dunkerton, Glen Hafod, Endcliffe:

- (2) The Corporation shall repay to the shipowner the reasonable cost of adapting any vessel named in paragraph (1) of this section as is then owned by him so that any parts of the vessel which are higher than thirty-eight feet above the water line when the vessel is in ballast are either permanently lowered below that height or can be lowered below that height:

Provided that—

(a) the Corporation shall not be liable to pay for any adaptation of a vessel named in paragraph (1) of this section which is not in accordance with particulars and specifications previously approved by the Corporation in writing or deemed to be approved by the Corporation under paragraph (3) of this section;

(b) the shipowner shall supply to the Corporation such information including, in particular, plans of the ships named in paragraph (1) of this section and owned by him, as the Corporation shall reasonably require and shall afford to the Corporation and to persons authorised by them reasonable facilities for inspecting the said ships;

(c) compensation shall not be payable by the Corporation under this subsection in respect of any loss incurred by a shipowner by reason of a vessel being taken or kept out of use whilst being adapted unless the shipowner proves that it was not practicable to adapt the vessel at a time when the vessel was not in use and that he took all reasonable steps to reduce the time during which the vessel was out of use by reason of the carrying out of the adaptation and, in particular, but without prejudice to the generality of the foregoing provisions, that so far as practicable he allocated the work between the vessel being adapted and any other vessels under his control so as to free the vessel being adapted for the period required for adaptation:

- (3) If within twenty-eight days after the receipt by the Corporation from the shipowner of particulars and specifications of the work of adapting any vessel named in paragraph (1) of this section the Corporation have not intimated their approval or disapproval thereof, they shall be deemed to have approved the same:
- (4) Any difference which may arise between the Corporation and the shipowner under this section, other than a difference as to the construction of this section, shall be settled by arbitration.

PART V
—cont.

For protection
of William
Adams and Co.
(Newport)
Limited.

38. For the protection of William Adams and Co. (Newport) Limited, its successors in title and assigns (in this section referred to as “the company”) the provisions of this section shall have effect unless otherwise agreed in writing between the Corporation and the company:—

The provisions of the Lands Clauses Acts with respect to compensation for land injuriously affected shall extend in relation to the company so as to require the Corporation on a claim made not later than—

(a) three years after the passing of this Act; or

(b) six months after the date on which any part of the bridge has been erected over the river between the piers referred to in paragraph (a) of subsection (2) of section 17 (Power to construct works) of this Act and after notice thereof has been given by the Corporation to the company;

whichever is the later, to make compensation to the company for such injurious affection of its business (other than the import of sand or gravel taken from the Bristol Channel) as is occasioned by reason of the construction of the bridge or other works authorised by this Act, notwithstanding that no part of the lands of the company is taken by the Corporation:

Provided that the company shall take all reasonable steps to reduce any such injury.

For protection
of Newport
Harbour
Commis-
sioners.

39. For the protection of the harbour commissioners the following provisions shall, unless otherwise agreed in writing between the Corporation and the harbour commissioners, apply and have effect:—

(1) (a) Before commencing the construction of any of the works, so far as the same shall be on, under or over any land below the line of high water, plans, sections and particulars of the work to be constructed shall be delivered by the Corporation to the harbour commissioners for their approval (such approval not to be unreasonably withheld) and, except as provided by paragraph (8) of this section, such work shall not be constructed otherwise than in accordance with such plans, sections and particulars as may be approved by the harbour commissioners or settled by arbitration;

(b) Any such work shall be executed to the reasonable satisfaction of the harbour commissioners:

(2) If within two months after the receipt by the harbour commissioners of any plans, sections or particulars they have not intimated their disapproval thereof, and the reasons for their disapproval, they shall be deemed to have approved the same:

- (3) After the purpose for which any temporary structure, placed in the river in connection with the construction of any of the works has been accomplished, the Corporation shall, with all reasonable dispatch, and in any case after reasonable notice from the harbour commissioners requiring them to do so, remove any such temporary structure or any materials for the same which may have been placed in the river by the Corporation and, on their failing to do so within thirty days after receipt of such notice, the harbour commissioners may remove the same at the expense of the Corporation; and the amount of any expense reasonably so incurred shall be a debt due from the Corporation to the harbour commissioners and shall be recoverable by the harbour commissioners in any court of competent jurisdiction:
- (4) From the time when the construction of the bridge is commenced the Corporation shall proceed with such work with all reasonable diligence and without unreasonable delay until the bridge is completed and all temporary works removed from the river:
- (5) The Corporation shall allow at such times as may be necessary access by water and by land to the harbour commissioners, their officers and servants onto and over any part of the bridge without hindrance whilst in the execution of their duties in relation to the bridge:
- (6) The Corporation shall afford all reasonable facilities to the harbour commissioners to place and maintain on the bridge all such signals, tide-gauges or other apparatus for the benefit of navigation as the harbour commissioners may from time to time reasonably require:
- (7) The Corporation shall not carry out any repairs to, or alteration of, the bridge involving any restriction whether permanent or temporary in the width of the clear opening or height referred to in paragraphs (a) and (b) of subsection (2) of section 17 (Power to construct works) of this Act or involving any obstruction in the river or on the foreshore thereof except with the prior consent in writing of the harbour commissioners, which consent shall not be unreasonably withheld, and subject to such reasonable conditions as the harbour commissioners may impose:
- (8) If there shall be any inconsistency between any plans or sections approved by the harbour commissioners or settled by arbitration under this section and the plans and sections approved by the Minister under section 27 (Works below high-water mark to be subject to approval

PART V
—cont.

of Minister) of this Act the works shall be executed in accordance with the plans and sections so approved by the Minister:

- (9) Any difference arising between the Corporation and the harbour commissioners under this section (other than a difference as to the construction of this section) shall except as provided by paragraph (8) of this section be settled by arbitration.

For protection
of Usk River
Board.

40. For the protection of the river board the following provisions shall, unless otherwise agreed in writing between the Corporation and the river board, apply and have effect:—

- (1) In this section—

“authorised work” means so much of Substituted Work No. 1 or of any subsidiary work, whether temporary or permanent, forming part of or constructed under the powers of this Act, in connection with Substituted Work No. 1, as may be constructed on, over or under, or may in any other way affect the banks or bed of the river or the flow of water therein;

“banks” has the meaning assigned to that expression by the Land Drainage Act, 1930, and “bank” shall be construed accordingly;

“construction” includes execution, placing and altering and, in relation to temporary works, also includes removal and “construct” and “constructed” have corresponding meanings;

“plans”, in relation to permanent works, includes sections, specifications and particulars and, in relation to temporary works, includes sections:

- (2) (a) Before commencing the construction of an authorised work, the Corporation shall submit plans of the work to the river board for their approval (such approval not to be unreasonably withheld) and the authorised work shall not be constructed otherwise than in accordance with such plans as may be approved by the river board or settled by the Minister;
- (b) Any authorised work shall be constructed to the reasonable satisfaction of the river board who shall be given reasonable notice of the date and time on and at which the authorised work is to be commenced;
- (c) Not less than fourteen days before commencing any work of maintenance, repair or renewal of an authorised work, the Corporation shall, except in case of emergency, submit to the river board for their information, a notice of intention to commence the work and a description of the work:

- (3) If the river board do not within one month after the receipt of any such plans signify to the Corporation their approval or disapproval thereof together, in the case of a disapproval, with the grounds of their disapproval, they shall be deemed to have approved the same:
- (4) The Corporation shall at all reasonable times afford to the engineer of the river board and his duly authorised representatives access to an authorised work for the purpose of inspection:
- (5) If there shall be any inconsistency between any plans approved or deemed to be approved by the river board under the provisions of this section and the plans approved by the Minister under section 27 (Works below high-water mark to be subject to approval of Minister) of this Act, the authorised work shall be constructed in accordance with the plans approved by the Minister:
- (6) If by reason of the construction, maintenance, repair or renewal of any authorised work or, if by reason of the failure of any authorised work or of the Corporation to maintain it, injury or damage is caused to the river or the banks thereof or to any property of the river board lying or situate therein such injury or damage shall be forthwith made good by the Corporation to the reasonable satisfaction of the river board and, if the Corporation fail to do so, the river board may make good the same and recover from the Corporation the costs and expenses (including a proportion of the overhead charges of the river board) reasonably incurred by them in so doing:
- (7) If at any time after the construction of the bridge the river board raise the height of or otherwise strengthen or improve either of the banks of the river adjoining any authorised work, the Corporation shall to the reasonable satisfaction of the river board carry out such works (if any) in relation to the authorised work as are agreed with the river board or, in default of agreement, settled by arbitration to be reasonably necessary to make it conform with the adjacent parts of the banks as so raised in height, strengthened or improved:

Provided that the cost reasonably incurred by the Corporation in carrying out such works (including a proper proportion of the overhead charges of the Corporation) shall be repaid by the river board to the Corporation on demand:

- (8) Any difference arising between the Corporation and the river board under this section (other than a difference as

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to the construction of this section or as to the approval of plans under subparagraph (a) of paragraph (2) or under paragraph (5) of this section) shall be settled by arbitration.

For protection
of the British
Transport
Commission.

41. For the protection of the British Transport Commission (in this section referred to as “the commission”) the following provisions shall, unless otherwise agreed in writing between the Corporation and the commission, apply and have effect:—

(1) In this section—

“railway property” means any lands, railways and railway works of the commission within the limits of deviation shown on the deposited plans;

“the authorised works” means so much of Substituted Work No. 1 authorised by this Act and of any other works constructed by the Corporation under the powers of this Act (with the exception of the underbridge) as may be situated upon, across, under or over railway property or may in any way affect the same and includes the construction, maintenance and renewal of such works;

“the underbridge” means the underbridge under railway property to be widened as part of Work No. 3 authorised by this Act;

“the engineer” means an engineer to be appointed by the commission;

“plans” includes sections, drawings and specifications:

(2) The Corporation shall not under the powers of this Act acquire compulsorily any railway property other than the lands delineated and numbered 4, 5, 62 and 99 on the deposited plans but they may, in accordance with section 12 (Power to acquire easements only) of this Act, acquire such easements and rights in relation to railway property as they may require for the purposes of the authorised works:

(3) The Corporation shall not without the consent of the commission (such consent not to be unreasonably withheld) in the construction of the authorised works deviate laterally or vertically downwards from the line or level of those works shown on the deposited plans and sections:

(4) The Corporation shall, before commencing the construction of the authorised works (other than works of

maintenance or repair), furnish to the commission plans thereof for the reasonable approval of the engineer and shall not commence the construction of the authorised works until such plans have been approved in writing by the engineer or are deemed to be approved or have been settled by arbitration:

Provided that, if within twenty-eight days after such plans have been furnished to the commission, the engineer has not intimated his approval or disapproval thereof together, in the case of a disapproval, with the grounds of his disapproval, he shall be deemed to have approved them:

- (5) Upon being requested so to do by the Corporation the commission shall design the widening of the underbridge to the width and position notified by the Corporation and shall with all reasonable dispatch deliver plans of the same to the Corporation for their reasonable approval:
- (6) When the plans referred to in paragraph (5) of this section have been approved by the Corporation or settled by arbitration the commission shall, upon being requested so to do by the Corporation, widen the underbridge with all reasonable dispatch on behalf of the Corporation in accordance with the said plans and to the reasonable satisfaction of the Corporation:
- (7) Upon the completion of the widening of the underbridge the commission shall become responsible for the maintenance and renewal of the underbridge as so widened and the Corporation shall pay to the commission annually the amount by which the annual cost of maintaining and renewing the widened underbridge exceeds what would have been the annual cost of maintaining and renewing the existing underbridge of the commission. The Corporation may, in lieu of making annual payments, at any time pay to the commission a capitalised sum representing the extra cost to the commission of such maintenance and renewal as aforesaid:
- (8) Upon signifying his approval or disapproval of any plan submitted under paragraph (4) of this section, the engineer may specify any temporary or permanent protective works which in his opinion should be carried out before the commencement of the authorised works to ensure the stability of any railway property or to protect it from injury and such temporary or permanent

PART V
—cont.

protective works as may be reasonably necessary for those purposes may be constructed by the commission; and the Corporation shall not commence the construction of the authorised works until such temporary or permanent protective works have been completed:

Provided that any temporary or permanent protective works to be constructed by the commission in pursuance of this paragraph shall be constructed with all reasonable dispatch:

- (9) The Corporation shall give to the engineer twenty-eight days' notice in writing of their intention to commence the authorised works except in cases of emergency when they shall give such notice thereof as may be reasonably practicable:
- (10) The authorised works shall, when commenced, be carried out with all reasonable dispatch in accordance with the plans approved or deemed to be approved or settled by arbitration and under the supervision (if given) and to the reasonable satisfaction of the engineer and, if any damage to railway property or any interference, delay or interruption to the traffic on the railway shall be caused or take place by reason of the authorised works or the widening of the underbridge, the Corporation shall, notwithstanding any such approval as aforesaid, forthwith make good such damage and pay to the commission all reasonable costs and expenses to which they may be put and reasonable compensation for any loss which they may sustain by reason of any such damage, interference, delay or interruption, other than damage, interference, delay or interruption caused by the neglect or default of the commission, their servants or agents:
- (11) The Corporation shall at all times afford reasonable facilities to the engineer for access to the authorised works and shall supply him with all such information as he may reasonably require with regard to the authorised works or the method of construction thereof:
- (12) If any alterations or additions, either permanent or temporary, to railway property as existing at the commencement of an authorised work or the widening of the underbridge shall be reasonably necessary in consequence thereof, such alterations and additions may be effected by the commission after notice has been given to the Corporation and the Corporation shall repay to

the commission the reasonable cost thereof including a capitalised sum representing the increased or additional cost of maintaining, working and, when necessary, renewing any such alterations or additions:

- (13) The Corporation shall repay to the commission all costs, charges and expenses reasonably incurred by the commission—

(a) in designing and carrying out the widening of the underbridge or in constructing any protective works under the provisions of paragraph (8) of this section or in connection with the widening of the underbridge;

(b) in respect of the employment of any inspectors, signalmen, watchmen and other persons whom it shall be reasonably necessary to appoint for inspecting, watching, lighting and signalling railway property and for preventing as far as may be all interference, obstruction, danger or accident arising from the construction, maintenance, repair or failure of the authorised works or the widening of the underbridge;

(c) in respect of any special traffic working resulting from any speed restrictions which are necessary as a result of the construction, maintenance, repair or failure of the authorised works or the widening of the underbridge and which may, in the opinion of the engineer, require to be imposed or from the substitution or diversion of services which is also necessary for the same reason; and

(d) in any additional lighting of railway property in the vicinity of the authorised works or the widening of the underbridge which is necessary as a result of the construction, maintenance, repair or failure of the authorised works or the widening of the underbridge:

- (14) If at any time after the completion of the authorised works the commission shall give notice to the Corporation informing them that the state of repair of the authorised works appears to be such as to affect prejudicially railway property, the Corporation shall, within twenty-eight days of the receipt of any such notice, commence to take and thereafter complete taking such steps (if any) as may be reasonably necessary to put the authorised works in such state of repair as not to affect prejudicially railway property and, if and whenever the Corporation fail to do so, the commission may make and do in and upon the lands of the commission or of the

PART V
—cont.

Corporation all such works and things as shall be requisite to put the works in such state of repair as aforesaid and the costs and expenses reasonably incurred by the commission in so doing shall be repaid to them by the Corporation:

- (15) The Corporation shall be responsible for and make good to the commission all costs, charges, damage and expenses not otherwise provided for in this section which may be occasioned to the commission by reason of the authorised works or the widening of the underbridge or the failure of the authorised works or by reason of any act or omission of the Corporation or of any persons in their employ or of their contractors or others whilst engaged upon the authorised works; and the Corporation shall effectively indemnify and hold harmless the commission from and against all claims or demands arising out of or in connection with the authorised works or the widening of the underbridge or any such failure, act or omission as aforesaid and the fact that any work or thing may have been done in accordance with any plan approved by the engineer or in accordance with any requirement of the engineer or under his supervision shall not excuse the Corporation from any liability under the provisions of this section unless such costs, damage or expenses shall be occasioned or such claims and demands shall arise by reason of the neglect or default of the commission, their servants or agents:

Provided that the commission shall give to the Corporation reasonable notice of any claim or demand as aforesaid and no settlement or compromise thereof shall be made without the consent of the Corporation:

- (16) Any additional expense which the commission may reasonably incur after giving one month's notice to the Corporation in widening, altering, reconstructing or maintaining any railway or works of the commission in pursuance of any powers existing at the passing of this Act by reason of the existence of the authorised works or the widened underbridge shall be repaid by the Corporation to the commission:
- (17) If it shall be necessary for the protection and safety of railway property for the commission to purchase any minerals for the support of such property or to pay compensation for any minerals to be left unworked for the support thereof and the authorised works or the

underbridge also derive support from such minerals the Corporation shall repay to the commission a reasonable proportion of the amount paid by the commission for or in respect of such minerals and the costs and expenses incurred by the commission in relation to any such purchase or payment of compensation:

- (18) Before providing any illumination on the bridge the Corporation shall consult with the commission and comply with any reasonable requirements of the commission in regard thereto:
- (19) Notwithstanding anything shown on the substituted plan and section the Corporation shall so construct Substituted Work No. 1 authorised by this Act as to provide that the underside of that work shall be at a height of not less than fourteen feet nine inches above Work No. 4 authorised by this Act over a carriageway twenty-four feet wide and at a height of not less than fifteen feet eight inches above the rail level of the Eastern Valleys Railway of the commission:
- (20) Any difference arising between the Corporation and the commission under this section (other than a difference as to the meaning or construction of this section) shall be settled by arbitration.

42. For the protection of the undertakers the following provisions shall, unless otherwise agreed in writing between the Corporation and the undertakers concerned, apply and have effect:—

Apparatus
of certain
statutory
undertakers

- (1) In this section, unless the subject or context otherwise requires—

“adequate alternative apparatus” means alternative apparatus adequate to enable the undertakers to fulfil their statutory functions in a manner not less efficient than previously;

“apparatus” means—

(a) in relation to the electricity board, or the generating board, electric lines and works (as respectively defined in the Electric Lighting Act, 1882) belonging to or maintained by either of such undertakers;

(b) in relation to the gas board and the water board, mains, pipes or other apparatus belonging to or maintained by either of such boards;

PART V
—cont.

(not being in any case apparatus in respect of which the relations between the Corporation and the undertakers are regulated by the provisions of Part II of the Public Utilities Street Works Act, 1950, or by Part II of the Twelfth Schedule to the Highways Act, 1959, as applied by this section) and includes any works constructed for the lodging therein of apparatus;

“ authorised work ” means any work carried out or thing done under the powers of section 17 (Power to construct works), section 19 (Power to make subsidiary works), section 20 (Subsidiary works in river and elsewhere) or section 21 (Underpinning of buildings and structures near works) of this Act;

“ in ” in a context referring to apparatus includes under, over, across, along or upon ;

“ position ” includes depth;

“ the undertakers ” means the electricity board, the generating board, the gas board and the water board or any of them:

- (2) Notwithstanding anything in this Act or shown on the deposited plans, the Corporation shall not, under the powers of this Act, acquire any apparatus otherwise than by agreement:
- (3) If the Corporation in the exercise of the powers of this Act acquire any land in which any apparatus is placed, that apparatus shall not be removed under this section nor shall any right of the undertakers to use, maintain, repair, renew or inspect any apparatus in that land be extinguished until any necessary adequate alternative apparatus has been constructed and is in operation to the reasonable satisfaction of the undertakers:
- (4) (a) If the Corporation, for the purpose of or in connection with the construction of any authorised work, require the removal of any apparatus, they shall give to the undertakers written notice of such requirement with a plan and section of the proposed work;
- (b) If the Corporation require the undertakers to remove any apparatus, or if in consequence of the construction or carrying out of an authorised work the undertakers shall reasonably require to remove any apparatus, the Corporation shall, if practicable, afford to the undertakers the necessary facilities and rights for the construction of adequate alternative apparatus in other lands

of the Corporation (other than land comprised in or forming part of the bridge) and thereafter for the maintenance, repair, renewal and inspection of such apparatus:

Provided that if the alternative apparatus or any part thereof is to be constructed elsewhere than in other lands of the Corporation, and the Corporation are unable to afford such facilities and rights as aforesaid in the lands in which the alternative apparatus or such part thereof is to be constructed, the undertakers shall, on receipt of a written notice to that effect from the Corporation, forthwith use their best endeavours to obtain the necessary facilities and rights:

- (5) (a) Any alternative apparatus to be constructed in lands of the Corporation in pursuance of paragraph (4) of this section shall be constructed in such manner and in such line or situation as may be agreed between the undertakers and the Corporation or, in default of agreement, settled by arbitration;
- (b) The undertakers shall, after the manner of construction and the line and situation of any necessary alternative apparatus has been agreed or settled by arbitration as aforesaid and after the grant to the undertakers of any such facilities and rights as are referred to in paragraph (4) of this section, proceed with all reasonable dispatch to construct and bring into operation the alternative apparatus and thereafter to remove any apparatus required by the Corporation to be removed under the provisions of this section and, in default, the Corporation may remove the apparatus:
- (6) Notwithstanding anything in paragraph (5) of this section, if the Corporation give notice in writing to the undertakers that they desire themselves to execute any part of so much of the work necessary in connection with the construction of the alternative apparatus or the removal of the apparatus required to be removed as will be situate in any lands of the Corporation, such work, in lieu of being executed by the undertakers shall be executed by the Corporation with all reasonable dispatch under the superintendence, if given, and to the reasonable satisfaction of the undertakers:

Provided that nothing in this paragraph shall authorise the Corporation to execute the actual placing, erection, installation, bedding, packing, removal, connection or disconnection of any apparatus or any filling around the apparatus (where the apparatus is laid in a trench) within twelve inches above the apparatus:

PART V
—cont.

- (7) Where in accordance with the provisions of this section the Corporation afford to the undertakers facilities and rights for the construction, maintenance, repair, renewal and inspection in lands of the Corporation of alternative apparatus in substitution for apparatus to be removed as aforesaid, those facilities and rights shall be granted upon such terms and conditions as may be agreed between the Corporation and the undertakers or, in default of agreement, determined by arbitration:

Provided that—

(a) in determining such terms and conditions as aforesaid in respect of alternative apparatus to be constructed across or through an authorised work the arbitrator shall—

(i) give effect to all reasonable requirements of the Corporation for ensuring the safety and efficient operation of the authorised work and for securing any subsequent alterations or adaptations of the alternative apparatus which may be required to prevent interference with any such work; and

(ii) so far as it may be reasonable and practicable to do so in the circumstances of the particular case, give effect to any terms and conditions applicable to the apparatus constructed through the lands of the Corporation for which the alternative apparatus is to be substituted;

(b) if the facilities and rights to be afforded by the Corporation in respect of any alternative apparatus, and the terms and conditions subject to which the same are to be granted are, in the opinion of the arbitrator, more or less favourable on the whole to the undertakers than the facilities, rights, terms and conditions applying to the apparatus to be removed, the arbitrator shall make such provision for the payment of compensation to or by the Corporation by or to the undertakers in respect thereof as shall appear to him to be reasonable having regard to all the circumstances of the particular case:

- (8) (a) Not less than twenty-eight days before commencing to execute an authorised work which is near to or is likely to affect any apparatus the removal of which has not been required by the Corporation under paragraph (4) of this section, the Corporation shall submit to the undertakers a plan, section and description of the work to be executed;

- (b) Such work shall be executed substantially in accordance with the plan, section and description submitted as aforesaid and in accordance with such reasonable requirements as may be made by the undertakers for the alteration or otherwise for the protection of the apparatus, or for securing access thereto, and the undertakers shall be entitled by their officer to watch and inspect the execution of such work:

Provided that—

(i) if the undertakers within fourteen days after the submission to them of any such plan, section and description shall, in consequence of the work proposed by the Corporation, reasonably require the removal of any apparatus and give written notice to the Corporation of such requirement, the foregoing provisions of this section shall apply and have effect as if the removal of such apparatus had been required by the Corporation under paragraph (4) thereof; and

(ii) nothing in this sub-paragraph shall preclude the Corporation from submitting at any time, or from time to time, but in no case less than twenty-eight days before commencing the execution of any such work, a new plan, section and description in lieu of the plan, section and description previously submitted and thereupon the provisions of this paragraph shall apply to and in respect of such new plan, section and description;

- (c) The Corporation shall not be required to comply with sub-paragraph (a) of this paragraph in a case of emergency but, in such a case, they shall give to the undertakers notice as soon as reasonably practicable and a plan, section and description of the work as soon as reasonably practicable thereafter and shall comply with sub-paragraph (b) of this paragraph so far as reasonably practicable in the circumstances:

- (9) The Corporation shall repay to the undertakers the reasonable expenses incurred by the undertakers in or in connection with—

(a) the removal and relaying or replacing of any apparatus and the provision and construction of any new apparatus under the provisions of paragraph (4) of this section; and

(b) the subsequent alteration or adaptation of apparatus required under the provisions of proviso (a) (i) to paragraph (7) of this section;

PART V
—cont.

and the reasonable costs of and incidental to—

(i) the cutting off of any apparatus from any other apparatus; and

(ii) any other work or thing rendered reasonably necessary in consequence of any such operations as are referred to in this paragraph:

Provided that subsections (3) and (4) of section 23 of the Public Utilities Street Works Act, 1950 (which imposes limitations on undertakers' rights to payment), shall so far as applicable extend and apply to any payment to be made by the Corporation under this paragraph as if the works hereinbefore in this paragraph mentioned were such undertakers' works as are referred to in the said subsection (3) and as if in that subsection for the words "specified as so necessary in a specification of the works settled under Part I of the Fourth Schedule to this Act or agreed so to be by the promoting authority" there were substituted the words "agreed or settled by arbitration under section 42 (Apparatus of certain statutory undertakers) of the Newport Corporation Act, 1961":

- (10) If in consequence of the exercise of the powers of this Act the access to any apparatus of the undertakers is materially obstructed, the Corporation shall provide an alternative means of access to such apparatus:
- (11) The provisions of Part II of the Public Utilities Street Works Act, 1950, shall apply as if the definition of "road purposes" in section 39 of that Act includes such works authorised by this Act as are referred to in paragraph (a) of subsection (1) of section 21 of the said Act of 1950:
- (12) The provisions of Part II of the Twelfth Schedule to the Highways Act, 1959, shall apply in relation to a highway or part thereof stopped up under section 22 (Stopping up of highways) of this Act to the same extent as if the highway or part thereof had been stopped up pursuant to an order made under section 108 of the Highways Act, 1959, on the application of the Corporation;
- (13) (a) Any difference which may arise between the Corporation and the undertakers under this section shall be referred to and determined by arbitration;
- (b) In settling any difference under this section the arbitrator may, if he thinks fit, require the Corporation to execute any temporary or other works so as to avoid, so far as may be reasonably possible, interference with the use of the apparatus.

43.—(1) In this section, unless the subject or the context otherwise requires—

PART V
—cont.

“ apparatus ” means—

(a) in relation to the Postmaster-General, telegraphic lines;

(b) in relation to the electricity board, or the generating board, electric cables;

(c) in relation to the gas board, gas mains; and

(d) in relation to the water board, water mains,

and includes any necessary works ancillary thereto;

Accommoda-
tion for
apparatus of
Postmaster-
General and
statutory
undertakers.

“ undertaker ” means the Postmaster-General, the electricity board, the generating board, the gas board and the water board.

(2) (a) If requested in writing by an undertaker within fifty-six days after this Act passes into law the Corporation shall, in constructing the bridge, provide therein accommodation and support for the apparatus of the undertaker and shall also provide a means by which the undertakers may have access to their apparatus after the same is laid without breaking up or interfering with the surface of the road and footway of the bridge.

(b) The accommodation so provided and the means of access thereto shall be of such nature and in such position and shall be capable of carrying such weight of apparatus as may be agreed between the Corporation and the undertaker, taking into account the requirements of other undertakers.

(3) (a) The additional cost reasonably incurred by the Corporation in providing such accommodation and support and means of access shall be repaid to the Corporation by the undertakers in a single payment or in such other manner as may be agreed between the Corporation and the undertakers or, in default of agreement, settled by arbitration.

(b) For the purpose of this subsection the additional cost of providing accommodation and support and means of access shall be the difference between the cost of constructing the bridge designed to provide such accommodation, support and means of access and the cost of constructing the bridge designed not to provide such accommodation, support and means of access.

(4) Subject to the provisions of subsection (3) of this section, an undertaker shall be entitled at all times to use free of charge the accommodation and means of access provided pursuant

PART V
—cont.

to the foregoing provisions of this section for the purposes of laying and placing therein and inspecting, repairing, maintaining, removing or renewing apparatus:

Provided that—

- (a) the apparatus, other than telegraphic lines, shall at all times conform in design, construction and use with the reasonable requirements of the Corporation;
- (b) such accommodation to be provided for the apparatus of the Postmaster-General shall not exceed that required for twenty four-inch ducts;
- (c) except in case of emergency, the undertaker shall give to the Corporation not less than ten days' notice in writing of their intention to execute works on the bridge and shall conform with the reasonable requirements of the Corporation as to the time or times at which the undertaker may exercise the right of entering upon and executing works on the bridge and as to the manner in which such works are executed and the Corporation shall be entitled to superintend the execution of such works. The costs reasonably incurred by the Corporation in such superintendence shall be repaid to them by the undertaker.

(5) (a) The undertaker shall maintain in good repair and to the reasonable satisfaction of the Corporation all apparatus placed on the bridge by the undertaker and shall from time to time carry out and maintain such works as the Corporation may reasonably require to be done or provided for ensuring the safety and stability of the bridge and the safety and convenience of those using the bridge, being works reasonably required to be done in consequence of the exercise by the undertaker of the rights conferred upon them by this section, and, in default, the Corporation may at the expense of the undertaker carry out and maintain such works and the undertaker shall repay to the Corporation any expenses reasonably incurred by the Corporation in carrying out any such works.

(b) The undertaker shall repay to the Corporation any loss, damage or expenses suffered or incurred by the Corporation by reason of the failure of the undertaker to comply with the provisions of this section, or by reason of any fault in, or accident occurring, in relation to any apparatus or material placed on the bridge by the undertaker and shall indemnify the Corporation against any actions, proceedings, costs, claims or demands arising out of, or in any way attributable to, the exercise by the

undertaker of the rights conferred upon them by this section except to the extent that such actions, proceedings, costs, claims or demands may arise by reason of the neglect or default of the Corporation their servants or agents:

Provided that whenever any loss or damage occurs which may give rise to a claim against the undertaker under this section the Corporation shall as soon as possible give notice thereof to the undertaker and shall not concede or compromise any claim made upon the Corporation without the concurrence of the undertaker.

(6) The Corporation shall afford to the undertaker all such facilities as the undertaker may reasonably require for the purpose of connecting the said apparatus with any other apparatus of the undertaker.

(7) Any question or difference which may arise between the Corporation and the undertaker under this section, other than any question or difference as to the meaning or construction of this section, shall be settled by arbitration.

44.—(1) Where in pursuance of the powers conferred by section 19 (Power to make subsidiary works) or section 22 (Stopping up of highways) of this Act the Corporation stop up or divert the whole or any portion of a highway the following provisions of this subsection shall unless otherwise agreed in writing between the Corporation and the Postmaster-General have effect in relation to so much of any telegraphic line belonging to or used by the Postmaster-General as is under, in, upon, over, along or across the land which by reason of the stopping up or diversion ceases to be a highway (in this subsection referred to as “the affected line”) (that is to say):—

(a) the power of the Postmaster-General to remove the affected line shall be exercisable notwithstanding the stopping up or diversion of the highway or part of the highway so, however, that the said power shall not be exercisable as respects the whole or any part of the affected line after the expiration of a period of one month from the date of the sending of the notice referred to in the next following subsection, unless before the expiration of that period the Postmaster-General has given notice to the Corporation of his intention to remove the affected line or that part thereof, as the case may be;

(b) the Postmaster-General may by notice in that behalf to the Corporation abandon the affected line or any part

PART V
—cont.

thereof and shall be deemed as respects the affected line or any part thereof to have abandoned it at the expiration of the said period of one month, unless before the expiration of that period he has removed it or given notice of his intention to remove it;

- (c) the Postmaster-General shall be entitled to recover from the Corporation the expense of providing in substitution for the affected line and any telegraphic line connected therewith which is rendered useless in consequence of the removal or abandonment of the affected line a telegraphic line in such other place as he may require;
- (d) where under paragraph (b) of this subsection the Postmaster-General has abandoned the whole or any part of the affected line it shall vest in the Corporation and the provisions of the Telegraph Acts, 1863 to 1954, shall not apply in relation to it as respects anything done or omitted after the abandonment thereof.

(2) As soon as practicable after the whole or any portion of a highway has been stopped up or diverted in pursuance of the powers referred to in subsection (1) of this section the Corporation shall send by post to the Postmaster-General a notice informing him of such stopping up or diversion.

(3) (a) The Corporation shall not under the powers conferred by section 19 (Power to make subsidiary works) of this Act, alter any telegraphic line belonging to or used by the Postmaster-General except in accordance with and subject to the provisions of paragraphs (1) to (8) of section 7 of the Telegraph Act, 1878.

(b) In this subsection the expression “alter” has the same meaning as in the Telegraph Act, 1878.

PART VI

GENERAL

Inquiries by
Minister.

45. The Minister may hold such inquiries as he may consider necessary in regard to the exercise of any powers conferred upon him or required to be exercised by him or by the giving of consents under this Act and subsections (2), (3), (4) and (5) of section 290 of the Act of 1933 shall apply to any such inquiry.

Arbitration.

46. In arbitrations under a provision of this Act mentioned in the first column of the following table the reference shall be to a single arbitrator to be appointed by agreement between the parties, or, in default of agreement, to be appointed by the

person mentioned in the second column of that table on the application of any party after giving notice in writing to the other party or parties:—

PART VI
—cont.

(1) Provision of Act	(2) Person appointing arbitrator
Section 21 (Underpinning of buildings and structures near works)	The President of the Institution of Civil Engineers.
Section 37 (Adaptation of ships)	The President of the Shipbuilding Conference.
Section 39 (For protection of Newport Harbour Commissioners)	The Minister.
Section 40 (For protection of Usk River Board)	The President of the Institution of Civil Engineers.
Section 41 (For protection of the British Transport Commission)	The President of the Institution of Civil Engineers.
Section 42 (Apparatus of certain statutory undertakers)	The President of the Institution of Civil Engineers.
Section 43 (Accommodation for apparatus of Postmaster-General and statutory undertakers)	The President of the Institution of Civil Engineers.

47. The sections of the Act of 1936 mentioned in the Third Schedule to this Act shall have effect as if references therein to that Act included references to this Act.

Application of general provisions of Act of 1936.

48. This Act shall be deemed to be an enactment passed before and in force at the passing of the Town and Country Planning Act, 1947, for the purposes of subsection (4) of section 13 and subsection (1) of section 118 of that Act.

Saving for town and country planning.

49. All the costs, charges and expenses preliminary to and of and incidental to the preparing, applying for, obtaining and passing of this Act or otherwise in relation thereto as taxed by the taxing officer of the House of Lords or of the House of Commons shall be paid by the Corporation out of the general rate fund or out of moneys to be borrowed under this Act.

Costs of Act.

SCHEDULES

FIRST SCHEDULE

Section 1.

NEWPORT CORPORATION ACTS AND ORDERS.

An Act of the seventh year of the reign of King George the Fourth intituled "An Act for lighting, washing, paving, cleansing and improving Streets, Highways and Places within the Town and Borough of Newport in the County of Monmouth."

Newport (Monmouthshire) Corporation Act, 1855.

Newport (Monmouthshire) Improvement Act, 1876.

Newport (Monmouthshire) Corporation Act, 1889.

Newport Corporation Act, 1892.

Newport Corporation Act, 1897.

Newport Corporation Act, 1900.

Newport Corporation Act, 1902.

Newport Corporation Act, 1906.

Newport (Monmouth) Order, 1909 (confirmed by Local Government Board's Provisional Orders Confirmation (No. 3) Act, 1909).

Newport Corporation Act, 1914.

Newport Corporation Act, 1920.

Newport (Mon.) Order, 1924 (confirmed by Ministry of Health Provisional Orders Confirmation (No. 8) Act, 1924).

Newport Corporation Act, 1925.

Newport Corporation (No. 1) Act, 1930.

Newport Corporation (No. 2) Act, 1930.

Newport Corporation Scheme, 1931 (confirmed by Public Works Facilities Scheme (Newport (Mon.) Corporation) Confirmation Act, 1931).

Newport Corporation (General Powers) Act, 1934.

Newport Extension Act, 1934.

Newport Corporation Act, 1953.

Newport Corporation Act, 1954.

SECOND SCHEDULE

Section 22.

HIGHWAYS TO BE STOPPED UP WHOLLY OR IN PART

George Street, between its junction with Granville Street and a point approximately three hundred feet to the east thereof.

Granville Lane, between its junction with George Street and a point approximately one hundred and fifty feet to the north-west thereof.

Granville Lane West, between its junction with George Street and a point approximately one hundred feet to the north thereof.

Canal Parade, between its junction with George Street and a point approximately one hundred and ninety feet to the north-west thereof.

THIRD SCHEDULE

SECTIONS OF THE ACT OF 1936 APPLIED

Section 47.

- Section 283 (Notices to be in writing; forms of notices, &c.).
 Section 285 (Service of notices, &c.).
 Section 288 (Penalty for obstructing execution of Act).
 Section 296 (Summary proceedings for offences).

Table of Statutes referred to in this Act

Short title	Session and chapter
An Act for lighting, washing, paving, cleansing and improving the Streets, Highways and Places within the Town and Borough of Newport in the County of Monmouth	7 Geo. 4 c. vi.
Lands Clauses Consolidation Act, 1845 ...	8 & 9 Vict. c. 18.
Railways Clauses Consolidation Act, 1845	8 & 9 Vict. c. 20.
Newport (Monmouthshire) Corporation Act, 1855	18 Vict. c. xli.
Newport (Monmouthshire) Improvement Act, 1876	39 & 40 Vict. c. ccxxvii.
Telegraph Act, 1878	41 & 42 Vict. c. 76.
Electric Lighting Act, 1882	45 & 46 Vict. c. 56.
Newport (Monmouthshire) Corporation Act, 1889	52 & 53 Vict. c. clii.
Newport Corporation Act, 1892	55 & 56 Vict. c. cxxiii.
Newport Corporation Act, 1897	60 & 61 Vict. c. clxviii.
Newport Corporation Act, 1900	63 & 64 Vict. c. xlii.
Newport Corporation Act, 1902	2 Edw. 7 c. clxvii.
Newport Corporation Act, 1906	6 Edw. 7 c. xcvii.
Newport Corporation Act, 1914	4 & 5 Geo. 5 c. lxxxviii.
Newport Corporation Act, 1920	10 & 11 Geo. 5 c. lvii.
Mines (Working Facilities and Support) Act, 1923	13 & 14 Geo. 5 c. 20.
Newport Corporation Act, 1925	15 & 16 Geo. 5 c. lvi.
Land Drainage Act, 1930	20 & 21 Geo. 5 c. 44.
Newport Corporation (No. 1) Act, 1930	20 & 21 Geo. 5 c. lxxviii.
Newport Corporation (No. 2) Act, 1930	20 & 21 Geo. 5 c. lxxix.
Local Government Act, 1933	23 & 24 Geo. 5 c. 51.
Newport Corporation (General Powers) Act, 1934	24 & 25 Geo. 5 c. lx.
Newport Extension Act, 1934	24 & 25 Geo. 5 c. lvii.
Public Health Act, 1936	26 Geo. 5 & 1 Edw. 8 c. 49.
Borrowing (Control and Guarantees) Act, 1946	9 & 10 Geo. 6 c. 58.
Town and Country Planning Act, 1947 ...	10 & 11 Geo. 6 c. 51.
Public Utilities Streets Works Act, 1950 ...	14 Geo. 6 c. 39.
Newport Corporation Act, 1953	1 & 2 Eliz. 2 c. xxxiii.
Town and Country Planning Act, 1954 ...	2 & 3 Eliz. 2 c. 72.
Newport Corporation Act, 1954	2 & 3 Eliz. 2 c. lii.
Highways Act, 1959	7 & 8 Eliz. 2 c. 25.
Land Compensation Act, 1961	9 & 10 Eliz 2 c. 33.

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